

Sudhir Kumar Srivastava v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 30 September 2024 · 2024:AHC-LKO:67458-DB · Writ - C No. 8481 of 2024 · **Disposed; bill dispute sent to Executive Engineer under para 6.5**

HEADNOTE

A writ to quash a domestic bill of Rs 68,069, said to wipe out solar-generation credit, was disposed of without deciding the bill. The consumer must apply within ten days to the Executive Engineer, who shall consider the solar panel and the energy generated and pass an order in accordance with law within three weeks. Recovery on the demand stays for five weeks or until that decision, whichever is later.

FACTUAL SUMMARY

The petitioner holds an 8 kW domestic connection at Eldeco Colony, Lucknow, taken on 27 February 2000, with a solar panel. After paying Rs 1,490 on 21 March 2024, he received no bills for March to July 2024 and was told that Rs 74,599 stood to his credit because the licensee bought surplus solar energy. A bill dated 17 August 2024 still showed a credit of Rs 23,131. On 5 September 2024 he was billed Rs 68,069, including arrears of Rs 57,529. He applied to the Executive Engineer on 10 September 2024 to correct that bill.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

billing dispute before Executive Engineer

HOLDING

Where the licensee says a domestic bill, including reversal of an apparent solar credit, can be settled under para 6.5 of the U.P. Electricity Supply Code, 2005, the writ is disposed of by directing the consumer to apply to the Executive Engineer within ten days and set out the alleged misconception about adjustment of solar energy. The Engineer shall take the installed solar panel and the electricity generated into account and pass an appropriate order in accordance with law within three weeks. Recovery on the demand shall not be enforced for five weeks or until that decision, whichever is later. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The Division Bench did not quash the bill of 5 September 2024. It disposed of the writ so the billing dispute, which counsel placed under para 6.5, would be decided by the Executive Engineer in accordance with law. ¶ 1

clause-6.5-representation-executive-engineer The consumer must, within ten days, apply to opposite party no. 4, the Executive Engineer, indicating the department's alleged misconception on adjustment of electricity generated by his solar panel. ¶ 1

para-6.5-objection-before-coercive-recovery Pending the Executive Engineer's order, and in any event for five weeks or until that decision whichever is later, no recovery on the demand is to be enforced. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL OF 5 SEPTEMBER 2024 FOR RS 68,069 RIGHTLY TREATED THE 17 AUGUST 2024 CREDIT AS A COMPUTER ERROR, AND WHAT ADJUSTMENT IS DUE FOR SOLAR ENERGY GENERATED AT THE CONNECTION.

Left to the Executive Engineer to decide in accordance with law after considering the solar installation. The Court granted no merits relief on the bill. ¶ 1

